



May 6th 2019 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=juSWYvcFSH0
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Delaware County Commissioners Meeting Report

Meeting Date: May [Day Not Explicitly Stated], 2019

Board Name: Delaware County Commissioners

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at [00:00:06](#).
- **Attendance:**
 - **Presiding Officer:** President Regan
 - **Members Present:** Mr. Henry, Mr. King, and President Regan.
 - **Members Absent:** None noted in the transcript.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** Not explicitly detailed in the transcript text aside from proceeding directly to appointments and business.
- **Approval of Minutes:**
 - [00:01:10](#) A motion was made and seconded to approve the minutes of April 27, 2019.

- **Action & Vote Disposition:** Approved by roll call vote (Mr. King: yes, Mr. Henry: yes, Ms. Regan: yes).

3. Substantive Business & Board Action

- **00:00:52 Appointment to Animal Control Board**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** Motion made to appoint Jim Turner to the animal control board.
 - **Action & Vote Disposition:** Passed by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:01:19 ECI Regional Planning District & Merchant McIntyre Contract Renewal**
 - **Sponsor / Presenter:** Brad Bookout (Delaware County Economic Development, assisting Bill Walters of ECI Regional Planning District).
 - **Deliberation Summary:** Presented a 5-slide update on federal lobbying efforts in Washington, D.C., conducted by government relations firm Merchant McIntyre in partnership with Delaware County and the cities of Portland and Winchester. Key projects highlighted included lobbying for federal i-69 lane widening/paving funds (including an EDA economic impact study), securing a \$68,000 grant for the Business Enterprise Services and Trainings (BEST) program via the Innovation Connector, and assisting AquaBounty in Albany, Indiana, with securing GMO salmon certification. ECI proposed continuing the arrangement for two more years at \$40,000 annually funded via the economic development income tax (EDIT).
 - **Action & Vote Disposition:** Acknowledged and accepted for inclusion in the 2019-2020 EDIT plan; contract documents to be finalized and forwarded to County Attorney John Brooke.
- **00:09:29 Supplemental Agreement for Bridge 127 Replacement**
 - **Sponsor / Presenter:** County engineering/highway representative.
 - **Deliberation Summary:** Request for an additional \$36,580 for right-of-way land acquisition and appraisals (totaling 5 parcels instead of the originally anticipated 2) for the Bridge 127 replacement project over Eel River / South 600 West, scheduled for letting next year.
 - **Action & Vote Disposition:** Motion made, seconded, and approved by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:11:09 Annual Report & Transfer of Permanent School Fund / Common School Fund Account**
 - **Sponsor / Presenter:** Craig Craft (Auditor / County financial representative).
 - **Deliberation Summary:** Presented the annual report detailing dwindling interest balances in the historical school fund account due to mandatory annual payouts of \$729 and low interest returns (~\$167<U+2013>\$207/year). Following consultation with the State Board of Accounts, officials recommended clearing out the account

to avoid future shortfalls by transferring the remaining balance (~\$17,000+) to the Superintendent of Public Instruction for public education coffers.

- **Action & Vote Disposition:** Motion made and adopted by roll call vote (Mr. King: yes, Mr. Henry: yes, Ms. Regan: yes) allowing the auditor to transfer the funds.
- **00:14:05 CASA Grant Applications Approval Request**
 - **Sponsor / Presenter:** CASA Director.
 - **Deliberation Summary:** Requested (1) approval to accept a United Way local grant (supplemented by state CASA building grant excess funds, with contract reviewed by Attorney John Brooks) and (2) permission to apply for a federal Victims of Crime Act (VOCA) grant through the Indiana Criminal Justice Institute. The VOCA grant aims to fund staff retention, salary adjustments, and transition two part-time positions and one new position to full-time step advocates to address caseload waitlists.
 - **Action & Vote Disposition:** Motion made to approve the United Way grant and grant application permission. Approved by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:20:00 Emergency Management Grant Requests**
 - **Sponsor / Presenter:** Jason Rogers, Director of Emergency Management.
 - **Deliberation Summary:** Presented three grant requests: (1) local grant from Indiana American Water Company for wellhead and freshwater protection equipment for the hazmat team (noting a current fuel oil tank leak response on State Road 3); (2) Indiana Department of Homeland Security (IDHS) foundation grant (\$4,000) for public safety; and (3) State Homeland Security Grant Program (SHSP) collaborative district grant (\$50,000).
 - **Action & Vote Disposition:** Motion made and approved to accept/approve the three requests by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:22:50 Tree Cutting & Trimming Bids (Point Avenue / South Side)**
 - **Sponsor / Presenter:** Highway/Engineering representative & Attorney John Brooke.
 - **Deliberation Summary:** Opened two contractor bids for a tree cutting and trimming project along Point Avenue in South Side (near Southside Church of the Nazarene) to remove dead or dangerous trees threatening utility/road rights-of-way:
 1. *Hickson Waters Tree Service*: \$26,800 (includes cleanup and wood removal)
 2. *Josh Newsom's Tree Surgery*: \$32,950
 - **Action & Vote Disposition:** Motion made and approved to take the bids under advisement by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:24:53 Rivini Building Rail Spur Access Easement**
 - **Sponsor / Presenter:** County officials / Economic Development.
 - **Deliberation Summary:** Seeking approval for a permanent access easement along the Rivini building to access a rail spur for local shipping interests, valued via two appraisals at an average of \$46,400, funded via the Rivini TIF district. While verbal

agreements existed, staff noted minor language objections were raised by Rivini late Friday, but recommended proceeding with formal approval.

- **Action & Vote Disposition:** Advanced/Approved on the agenda.
- **00:27:37 Ordinance No. 2019-12: Building Code Amendments**
 - **Sponsor / Presenter:** Mr. Minnick / John Brooke.
 - **Deliberation Summary:** Introduced amendments to the county building code based on legislative changes adopted during the 2019 General Assembly.
 - **Action & Vote Disposition:** Motion made and approved for first reading / introduction by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:28:28 Resolution No. 2019-426: Personnel Policy Smoking/Vaping Ban Expansion**
 - **Sponsor / Presenter:** HR Director & EMA Director.
 - **Deliberation Summary:** Resolution to explicitly clarify and expand personnel policy section 7.8 to ensure the workplace smoking ban covers vaping and all tobacco products (including smokeless tobacco).
 - **Action & Vote Disposition:** Motion made, seconded, and approved by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:21:21 Resolution No. 2019-17: Tax Compliance Procedures for Jail Financing**
 - **Sponsor / Presenter:** County financial/legal staff.
 - **Deliberation Summary:** Adoption of standard tax compliance procedures required by lenders as part of the financing package for the major county jail project.
 - **Action & Vote Disposition:** Motion made and approved by roll call vote.
- **00:30:30 Highway Department Equipment Purchase (Road Tank)**
 - **Sponsor / Presenter:** Jesse [Last Name Unclear].
 - **Deliberation Summary:** Reviewed two bids for a road tank: Peak Tank at \$340,164 and Road Test at \$330,843 (corrected during discussion to \$330,543). Staff recommended selecting the lower bid.
 - **Action & Vote Disposition:** Motion made and approved to purchase the road tank from Road Test for \$330,543 by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).
- **00:31:46 Claims and Payment Approvals**
 - **Sponsor / Presenter:** County administration.
 - **Deliberation Summary:** Presentation of claims totaling \$1,544,606.75.
 - **Action & Vote Disposition:** Motion made, seconded, and approved by roll call vote (Mr. Henry: yes, Mr. King: yes, Ms. Regan: yes).

4. Open Public Comment / Citizen Forum

- **00:32:15 / 00:33:02 <U+2013> Representatives from MOPAP & Community Partners**
 - **Speaker:** Represented by local ministry/program leadership and Mr. King.
 - **Key Concerns & Topics Addressed:** Addressed the board regarding a proposal for acquiring county-held tax-sale properties (specifically 4 lots and 2 derelict homes)

to establish female transitional housing for individuals recovering from substance abuse. Discussion grew contentious as commissioners and citizens questioned the business model, which involved partnering with outside property investors (from Anderson) to renovate or "flip" properties, potential commercial profit motives, and comparisons to controversial contract-sale housing practices previously reported in Indianapolis media. Commissioners expressed concerns over shifting definitions from purely transitional housing to investor-backed property acquisition and requested a clearer, formal financial plan.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Commissioners advised the presenters to return with a revised financial plan incorporating proper loan/financing documentation.
 - **Adjournment:** 00:48:27 A motion to recess/adjourn was made and seconded. Official meeting concluded.
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